

Nasser v Najat [2024] DIFC SCT 452

NOVEMBER 25, 2024 SCT - JUDGMENTS AND ORDERS

Claim No. SCT 452/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

In the name of His Highness Sheikh Mohammed Bin Rashid Al Maktoum, Ruler of Dubai

IN THE SMALL CLAIMS TRIBUNAL OF DIFC COURTS

BEFORE H.E JUSTICE MAHA AL MHEIRI

BETWEEN

NASSER

Claimant

and

NAJAT

Defendant

Hearing :	7 November 2024
Judgment :	25 November 2024

JUDGMENT OF H.E JUSTICE MAHA AL MHEIRI

UPON this Claim being filed on 9 October 2024 (the “Claim”)

AND UPON a hearing having been listed before H.E. Justice Maha Al Mheiri on 7 November 2024, with the Claimant and the Defendant’s representative in attendance (the “Hearing”)

AND UPON reading the submissions and evidence filed and recorded on the Court file

IT IS HEREBY ORDERED THAT:

1. The Claimant's claims are dismissed.
2. Each party shall bear their own costs.

Issued by:

Hayley Norton

Assistant Registrar

Date of issue: 25 November 2024

At: 10am

THE REASONS

The Parties

1. The Claimant is Nasser (the "Claimant"), an individual filing a claim regarding his employment at the Defendant company.
2. The Defendant is Najat (the "Defendant"), a company located in the Dubai International Financial Centre ("DIFC").

Background and the Preceding History

3. The underlying dispute arises over the employment of the Claimant by the Defendant pursuant to an Employment Contract dated 25 September 2021 (the "Employment Contract"). The Claimant was hired as a 'Business Analyst' with a monthly salary of AED 25,833.33.
4. During his employment the Claimant allegedly experienced health issues, including panic attacks, anxiety, and severe sleep deprivation. These symptoms impacted the Claimant's ability to perform work tasks.
5. On 5 May 2023, the Claimant consulted a cardiologist who, after assessing his symptoms, recommended immediate and extended sick leave to manage his conditions. Following this consultation, the Claimant was diagnosed with depression.
6. In June 2023, the Claimant communicated his diagnosis to the Defendant's Managing Partner. The Claimant informed him that his doctor recommended a period of extended leave to manage his health condition. The Managing Partner communicated that the company's Human Resources (HR) team would follow the appropriate procedures and policies to accommodate the Claimant's situation.
7. Following the communication with the Managing Partner, the HR team failed to reach out or provide any formal communication about potential support or adjustments that could be made to accommodate the Claimant's medical condition.
8. The Claimant's sick leave was extended without the HR providing any structured plan for his reintegration or support.

9. On 8 September 2023, the Claimant received a telephone call from the Defendant's HR terminating the Claimant's employment with immediate effect because the Claimant had exhausted his sick leave entitlements.

10. On 9 October 2024, the Claimant filed a claim in the DIFC Courts' Small Claims Tribunal (the "SCT") claiming USD 20,000 in respect of discrimination and wrongful termination.

11. The Defendant responded to the Claim on 18 October 2024, intending to contest the jurisdiction of the DIFC Courts.

12. In line with the rules and procedures of the SCT, this matter was referred to me for determination, pursuant to a Hearing held on 7 November 2024.

Discussion

13. This dispute is governed by DIFC Employment Law No. 4 of 2021 (the "DIFC Employment Law") in conjunction with the relevant Employment Contract.

14. In reviewing the case file, one crucial factor that effects the Court's ability to determine the Claimant's entitlement came to light.

15. It is the Claimant's submission in all the evidence submitted to the Court that his last working day with the Defendant was on 8 September 2023.

16. On 8 September 2023, the Defendant formally terminated the Claimant's employment. The Claimant continued contact with the Defendant for six months after termination with the assistance of legal support.

17. There is no other evidence submitted demonstrating that the Claimant was working beyond September 2023. Although the Claimant submits that there were discussions between them, no outcome was reached as a result. It is the Claimant's duty to be aware of his rights and that he had 6 months from his termination date to file a claim.

18. Under Article 10 of the DIFC Employment Law, the Claimant was required to bring any claim within 6 months of 8 September 2023. However, the Claimant's claim form was filed on 9 October 2024. The Claimant's claim is therefore almost 13 months out of time.

19. Although the Claimant submits that he was on the Defendant's visa until October 2024, the Court considers both the employment visa and employment contract performance when evaluating the limitation period. Further, the Claimant was not receiving any salary from the Defendant. After the 8 September 2023, the Claimant cannot be considered an employee of the Defendant for the purpose of calculating the limitation period..

20. Article 10 of the DIFC Employment Law which sets out the limitation period for which an employee can bring their claim before the Court reads as follows:

"10. Limitation Period

Subject to Article 61(2), a Court shall not consider a claim under this Law unless it is brought to the Court within six (6) months of the relevant Employee's Termination Date.”

21. In light of the above finding, I have determined that the Claimant’s claims are time-barred having exceeded the 6 months’ limitation period from the Claimant’s termination date.

22. The Claimant’s claims are dismissed.